

		Request Nos. 1-12 to Plaintiff. This deposition must occur on a mutually agreeable date within the forty (40) day period. Plaintiff's request for monetary sanctions is DENIED. Both parties failed to adequately meet and confer, and Defendant acted with substantial justification in opposing this Motion and asserting its objections. Plaintiff is ordered to give notice of this ruling to Defendants.
15	30-2026-01555557 Hernandez vs. Bellflower Skilled, LLC	Plaintiff Maria Elena Hernandez's ("Plaintiff") Motion to Compel the Deposition of the Person Most Knowledgeable ("PMK") of Defendant Bellflower Skilled, LLC ("Defendant" or "Bellflower"), and for Production of Documents is GRANTED IN PART as to Request for Production Nos. 2-6 and DENIED IN PART as to Request for Production No. 14. IT IS ORDERED THAT within forty (40) days of this ruling, Defendant shall produce responsive documents to Request for Production Nos. 2-6 to Plaintiff. As a threshold matter, after this Motion was filed, Defendant produced a PMK for deposition as well as responsive documents to some of the Requests for Production, so Plaintiff has narrowed the Motion to Compel only to Document Request Nos. 2-6 and 14. Request for Production Nos. 2-6 seek various forms, reports, facility assessments, and assignment sheets and schedules for the relevant time period, which are all relevant to adequacy of staffing at the facility. Plaintiff contends that these documents go to the commonality element of class certification. The court finds that these document requests are well within the scope of the claims in this action and Defendant has provided no authority preventing Plaintiff from asserting this discovery, even at this early stage of litigation. Thus, the Motion is GRANTED as to these Requests for Production. Request for Production No. 14 asks for "all DOCUMENTS exchanged between [Bellflower] and any named defendant in this action, or anyone acting on their behalf, during the time period of February 19, 2022, through February 19, 2026 which references, in whatsoever manner, the staffing of DIRECT CAREGIVERS in the FACILITY." Plaintiff contends that this document request seeks evidence to support an alter ego theory of liability. However, the request is overbroad as it seeks all

		documents exchanged by Defendants that reference in any manner the staffing at the facility. Plaintiff is only entitled to documents that are relevant or are reasonably calculated to lead to the discovery of relevant evidence regarding the alleged understaffing at the subject facility. (<i>Terminals Equip. Co. v. City & Cnty. of San Francisco</i> (1990) 221 Cal. App. 3d 234, 247 [“A party seeking discovery must identify a “particularized need for the documents at issue . . . or [] show how they would be relevant to the complaint or calculated to lead to the discovery of relevant evidence.”].) The Motion is DENIED as to this overly broad document request. Plaintiff’s request for monetary sanctions is DENIED. Notwithstanding the court’s ruling, Defendant acted with substantial justification in opposing this Motion and asserting its objections. Defendant Bellflower Skilled, LLC is ordered to give notice of this ruling.
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